

M/s Anees Rayin And Company v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 7 February 2019 · Writ - C No. 2018 of 2019 · **Writ disposed; petitioner directed to object to the provisional assessment; coercive action stayed one month.**

HEADNOTE

Where a meter-testing challenge under Clause 5.6 of the Electricity Supply Code, 2005 is still at the provisional-assessment stage, the High Court will not decide the Code grievance on writ. The consumer is to file an objection before the Assessing Officer raising non-compliance with Clause 5.6; the officer is to consider it and pass an order in accordance with law. Coercive action on the demand was stayed for one month.

FACTUAL SUMMARY

The petitioner's meter was replaced and the old meter sent for testing to the manufacturer, M/s Secure Meter Limited, Gurgaon, not the licensee's laboratory or a laboratory of the consumer's choice. Challenging a notice-cum-assessment dated 1 December 2018 and a temporary disconnection order dated 24 November 2018, the petitioner alleged breach of Clause 5.6(c)(iii) of the Electricity Supply Code, 2005. The distribution company said the demand remained a provisional assessment, no final assessment had been made, and the petitioner had filed no objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

objection to provisional assessment after disputed meter testing

HOLDING

A consumer who alleges that Clause 5.6 of the Electricity Supply Code, 2005 was not followed in meter testing, while the demand is still only a provisional assessment, must file an objection before the Assessing Officer raising that grievance. The officer is then to consider the objection and pass an appropriate order in accordance with law. The High Court will not decide the Clause 5.6 controversy on writ at that stage. ¶ 3

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

Where a meter-testing challenge under Clause 5.6 of the Electricity Supply Code, 2005 is still at the provisional-assessment stage, the High Court will not decide the Code grievance on writ.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SENDING THE OLD METER TO THE MANUFACTURER FOR TESTING COMPLIED WITH CLAUSE 5.6

Left to the Assessing Officer if the consumer files an objection to the provisional assessment. ¶ 3